



Author Services, Inc.

Representing the literary, theatrical and musical works of L. Ron Hubbard

February 16, 2016

U.S. Copyright Office
James Madison Memorial Building
101 Independence Avenue, S.E.
Washington, DC 20559-6000

**Re: U.S. Copyright Office Notice of Inquiry (NOI)
Software-Enabled Consumer Products Study
Docket No. 2015-6**

Dear Sirs:

The following is the information we would like to provide in response to the above referenced Notice of Inquiry.

4. Whether, and to what extent, legitimate interests or business models for copyright owners and users could be undermined or improved by changes to copyright law in this area.

We represent the owner of the copyrights and patents in a device and the software that runs the device that we license a publisher to manufacture and sell this device under this license. The device can only be purchased and used by someone who is qualified and they must be specifically trained on the use of the device. Before the person purchasing the device can take it physically, they must agree to and sign a purchase agreement for the device and a separate license agreement for the software contained in the device. These agreements are not "shrink-wrap" or unilateral agreements. The agreements are read, agreed to as a condition to purchase/use and signed hard copy, not electronically. The agreements contain a number of restrictions concerning the use of the device with its software, including not being able to reverse engineer the device/software, not being able to copy the software and not being able to transfer the device to another unless certain conditions are met including the person the device is being transferred to signs both agreements before taking physical custody of the device.

Changes in the copyright laws such as what is being proposed in HR 682 You Own Devices Act introduced in the House, if passed in its present form or any such similar changes, would adversely affect our business model as covered above. Any changes to the copyright laws for software-enabled devices should contain an exception or not apply to circumstances where the device is limited and/or restricted as to who may purchase it and where the person purchasing

agrees by signed agreement(s) to the restrictions in the agreement(s). The copyright law should not invalidate such an arrangement or business model.

2. The rationale and proper scope of copyright protection for software embedded in everyday products, including the extent to which copyright infringement is a concern with respect to such software.

We would not consider that the above described device is an "everyday product", but feel we should add a comment under this category. The software that runs the above device has a copyright registration approved by the US Copyright Office and, as well, the device is also patented (both design and utility) with patent registrations approved by the US Patent Office. The whole reason we have the business model described above is protect these copyrights and patents, this is important to us and copyright infringement of the software is of concern.

If there is any further information that I can provide, please let me know. I can be contacted at the above address and phone number or emailed at ryland@authorservicesinc.com.

Very truly yours,

Ryland Hawkins